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Pilot License and Schedules

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BeaconRoute Pilot License

This Pilot License is effective April 15, 2024, between Asterglen Freight Software, Inc., as Provider, and Copper Kestrel Logistics, LLC, as Customer.

The parties wish to conduct a limited evaluation of Asterglen's BeaconRoute freight-routing platform. Customer operates the terminal environments identified in Schedule A and desires controlled access for evaluation, training, routing comparisons, and related support. Provider is willing to supply that access within the limits stated here.

The parties agree that this is a pilot arrangement, not an enterprise-wide purchase. The authorized terminal population is fixed by Schedule A unless both parties complete the written change process. Technical preparation, credential creation, monitoring, or discussion of a possible expansion does not by itself amend the licensed scope.

In exchange for the promises and consideration stated in this License, Provider grants Customer the limited rights described below. The effective date controls the pilot term even if implementation steps occur later. Each schedule is incorporated into this License, and a conflict is resolved by the main text unless a signed change expressly identifies the provision being replaced.

1. Definitions and Interpretation

1.1 **Authorized User** means Customer personnel or an approved contractor who needs access to perform a permitted pilot task and is bound to protect credentials and confidential information.

1.2 **Identifier** means a technical label, credential, tenant key, or comparable system reference associated with a terminal environment. An Identifier may be created for setup or testing without converting that environment into a licensed production terminal.

1.3 **Licensed Terminal** means one of the twelve terminal environments listed in Schedule A. A related backup, sandbox, or test instance does not increase the count if it serves only the listed terminal and is used within written instructions.

1.4 **Pilot Services** means access, configuration assistance, documentation, monitoring, and support supplied for the limited evaluation.

1.5 **Production Use** means reliance on BeaconRoute output to direct ordinary freight operations, excluding a controlled test that uses isolated or simulated traffic under Provider's written conditions.

1.6 **Proposed Terminal** means an environment Customer asks to evaluate for possible later addition. Proposed status creates no license until the parties sign a change order.

1.7 Headings aid reference but do not narrow the text. “Including” is not limiting; the singular includes the plural when context requires; and a calendar day is every day unless this License specifies a business day.

2. Pilot Services and 3. Licensed Scope

2.1 During the pilot term, Provider will supply controlled BeaconRoute access, documentation, ordinary implementation guidance, monitoring, and the support stated in Schedule B. Customer will supply accurate terminal information and reasonable cooperation.

2.2 Customer may permit Meridian Silt Holdings, LLC or another approved integrator to act as an Authorized User solely on Customer's behalf. Customer remains responsible for that contractor's compliance, and contractor access does not create an independent license.

3.1 Provider grants Customer a nonexclusive, nontransferable right to use BeaconRoute at the twelve Licensed Terminals identified in Schedule A. Use must remain within Customer's internal freight operations and the evaluation purposes described here.

3.2 Customer shall not share credentials with an unapproved person, bypass a technical control, resell platform output, or use test access as a substitute for a purchased production right.

3.3 Provider may provision an Identifier for diagnostic, staging, demonstration, or load-evaluation purposes. Provisioning is an operational step and is not evidence, standing alone, that the associated terminal has been added to Schedule A.

3.4 Customer shall not add a terminal to the licensed population without a change order signed by authorized representatives of both parties. A proposed, oral, or unsigned change does not amend Schedule A.

3.5 Any permission for a Proposed Terminal must be read according to its written conditions. Temporary access expires when the test ends or when the parties determine not to complete the contemplated change.

3.6 All rights not expressly granted remain with Provider. No course of technical assistance transfers ownership or supplies an implied enterprise license.

Schedule A — Twelve Licensed Terminals

The licensed population on the effective date consists only of these Customer-controlled environments:

1. Terminal T-01 — primary routing environment, credential group A01.
2. Terminal T-02 — standard routing environment, credential group A02.
3. Terminal T-03 — standard routing environment, credential group A03.
4. Terminal T-04 — regional routing environment, credential group A04.
5. Terminal T-05 — regional routing environment, credential group A05.
6. Terminal T-06 — standard routing environment, credential group A06.
7. Terminal T-07 — relay routing environment, credential group A07.
8. Terminal T-08 — relay routing environment, credential group A08.
9. Terminal T-09 — standard routing environment, credential group A09.
10. Terminal T-10 — regional routing environment, credential group A10.
11. Terminal T-11 — standard routing environment, credential group A11.
12. Terminal T-12 — continuity routing environment, credential group A12.

Schedule status: active for the pilot beginning April 15, 2024. The descriptive labels identify operational roles supplied by Customer and do not expand permitted functions. Customer may update a description or internal contact by written administrative notice, but substituting a different terminal or increasing the number of active environments requires the change procedure in Section 5. Provider will maintain a credential record that associates each listed environment with its approved Identifier and status.

4. Access Controls and Security

4.1 Provider will issue credentials through a controlled channel. Customer shall assign each credential only to an Authorized User, maintain an accurate access list, and promptly report a suspected compromise.

4.2 Customer shall use reasonable safeguards for authentication material, including unique user accounts where available, access revocation after role changes, and separation of test data from ordinary operating data.

4.3 Provider may collect access logs, terminal references, configuration events, and performance measures reasonably needed to operate the Pilot Services, confirm scope, investigate errors, and evaluate load.

4.4 Customer shall not suppress a terminal reference, combine traffic to evade a scope control, or relabel an unlicensed environment as one of the twelve entries. Provider shall not treat a routine identifier replacement for the same Licensed Terminal as an additional terminal.

4.5 If an integrator performs configuration, Customer must identify that integrator, explain its assigned tasks, and ensure it receives the relevant restrictions. Provider may communicate technical instructions directly to the integrator while keeping Customer informed.

4.6 A security suspension intended to contain an active threat may occur promptly, but the parties will distinguish that protective measure from termination or breach damages governed by Section 9.2. Access records will be preserved so the parties can review the basis and duration of any suspension.

4. Testing, Support, and Operational Review

4.7 Customer may conduct ordinary evaluation at the twelve Licensed Terminals. A test involving a Proposed Terminal requires Provider's written conditions describing environment, duration, traffic type, monitoring, and any required isolation.

4.8 Provider will supply reasonable implementation guidance, platform documentation, and a channel for reporting pilot issues. Support does not include unlimited custom development or responsibility for Customer's carrier, network, or terminal systems.

4.9 For a load test, the parties will identify expected volume, start and end times, success criteria, and persons authorized to change configuration. Customer shall not convert a load-test environment into Production Use merely because test results are satisfactory.

4.10 Customer will provide accurate sample information and will flag any live data included in a test. Provider may stop a test that threatens system stability, security, or other customers, while preserving available logs and explaining the technical reason.

4.11 At the end of a test, Customer and its integrator will disable temporary connections, return credentials as directed, and supply a status report. Provider will confirm whether technical cleanup is complete.

4.12 Neither silence during monitoring nor failure to object to an isolated event is approval of expanded scope. The parties may rely on a later writing to clarify test permissions, but only a signed change order can add Licensed Terminals for continuing production.

5. Change Control

5.1 Either party may propose a change in scope, term, service level, fee, or terminal population. A proposal must describe the requested change, affected environment, implementation assumptions, price, and desired effective date.

5.2 Receipt or technical review of a proposal does not bind either party. Provider may conduct feasibility work, create temporary Identifiers, or state test conditions while commercial review continues. Those steps do not constitute acceptance of the proposed terms.

5.3 A change becomes effective only when an authorized representative of each party signs the same written change order. The signed document must identify this License and state which schedule or section it modifies.

5.4 Electronic signatures and counterparts are permitted. An ordinary operational email may administer an approved test but does not serve as a scope amendment unless it clearly states that it is a change order and contains both authorized approvals.

5.5 Customer may ask Provider to add terminals in groups. Until the corresponding change is effective, each requested environment remains a Proposed Terminal and may be used only for the testing expressly allowed in writing.

5.6 If negotiations end without agreement, the parties will close temporary access in an orderly manner and retain records needed to reconcile charges, activity, and confidential information. Neither party must accept a proposed expansion merely because it invested time in evaluation.

6. Fees, Usage Records, and Payment

6.1 Customer will pay the pilot fee stated in Schedule B for access covering the twelve Licensed Terminals. Fees for a later expansion will be stated in a signed change order and are not established by an unsigned proposal.

6.2 Provider may maintain metering records for service capacity, support effort, and terminal activity. Metering supports administration and does not, without a written change, grant permission for an unlisted terminal.

6.3 Provider will issue itemized invoices describing the billing period and charge category. Customer shall raise a good-faith invoice dispute in writing and pay undisputed amounts when due.

6.4 Neither party may use a disputed meter entry as the sole basis for disabling access without first examining available terminal and test information. This review obligation does not excuse intentional concealment or credential misuse.

6.5 Each party will keep records reasonably sufficient to verify performance during the pilot. Customer records include terminal mappings, user assignments, and integrator directions; Provider records include provisioning history, access events, and support instructions.

6.6 An expansion proposal may state estimated pricing for evaluation. Unless signed, that estimate is not a present invoice, minimum commitment, liquidated-damages amount, or agreed valuation of alleged unauthorized use.

6.7 Taxes, if applicable, will be separately identified. Each party bears its own internal implementation expense except as a signed writing provides otherwise.

7. Data and Confidential Information

7.1 Customer retains its rights in freight, terminal, and operational data supplied for the pilot. Provider retains its rights in BeaconRoute, platform documentation, algorithms, service improvements, and preexisting materials.

7.2 Each receiving party shall use the other party's nonpublic business or technical information only to perform or evaluate this License. It will limit disclosure to personnel and approved contractors who need the information and owe protective duties.

7.3 Confidential information excludes material lawfully known without restriction, independently developed without use of protected material, received lawfully from another source, or made public without breach.

7.4 A party compelled to disclose protected information will give notice when legally permitted and will disclose only what the process requires. The parties will cooperate reasonably concerning protective treatment.

7.5 Provider may use aggregated performance measures that do not identify Customer, its terminals, or its freight. Customer may use its test results internally but may not publish Provider's nonpublic benchmarks without written consent.

7.6 At pilot end, each party will return or securely dispose of protected material on request, subject to routine retention and legal-preservation needs. Retained copies remain protected.

7.7 These duties do not determine whether a particular terminal was licensed. Data handling, technical access, and production authorization are distinct questions under this agreement.

8. Warranties, Responsibility, and Limits

8.1 Each party represents that it has authority to sign this License. Provider warrants that the Pilot Services will be performed in a professional manner consistent with the limited evaluation described here.

8.2 Customer is responsible for its operational decisions, source data, terminal systems, and instructions to contractors. BeaconRoute output is one input to Customer's routing process and does not replace Customer's safety or continuity procedures.

8.3 Provider does not warrant uninterrupted operation during planned tests, maintenance, network interruption, or conditions outside its reasonable control. It will use reasonable efforts to communicate known test limitations.

8.4 Each party shall take reasonable steps to limit avoidable loss after learning of a performance issue. Mitigation may include isolating an environment, reducing active connections, preserving logs, or using an agreed substitute process.

8.5 A claim for monetary loss must be supported by records identifying the category, causal event, and reasonable calculation. Neither an unsigned expansion price nor a technical identifier count automatically fixes damages.

8.6 Any contractual limit on damages applies according to its terms and governing law. Nothing in this section eliminates Section 9.2's written-notice and cure procedure for termination or breach damages.

8.7 The parties acknowledge that a prompt cure may prevent operational harm. They will cooperate in good faith to verify completion when a cure plan concerns terminal count or credential status.

9. Term and Termination

9.1 The pilot begins on the effective date and continues for the evaluation period stated in Schedule B unless extended by signed writing or ended under this section. Expiration ends ongoing access but does not erase accrued payment, confidentiality, record-retention, or dispute obligations.

9.2 Before either party terminates this License for material breach or seeks breach damages, that party must give written notice describing the breach and allow fifteen calendar days to cure. The notice must identify the conduct, obligation, and corrective result requested. Termination for that breach and a demand for breach damages may become effective only after the cure period expires without cure. If the receiving party timely completes the stated cure, the notifying party shall not terminate or demand breach damages on the cured ground.

9.3 The parties may agree in writing to a different corrective sequence for a particular event. Technical containment during the cure period should be no broader than reasonably necessary to protect systems and preserve evidence, and it will not be treated as termination unless the notice expressly says so after the contractual period.

9.4 Upon lawful termination or expiration, Customer will cease licensed use, coordinate credential closure, return protected materials as required, and pay undisputed accrued charges. Provider will preserve relevant records and offer reasonable transition information.

10. Notices and Disputes

10.1 A notice of breach or termination must be in writing, identify this License, describe the relevant facts, and be sent through the designated contract-notice channels. Operational messages may supplement but do not replace a required notice.

10.2 Before filing a contract action when time reasonably permits, the parties will confer through authorized business representatives about the disputed obligation, available records, and possible resolution. The conference does not shorten Section 9.2.

11. General Terms

11.1 This License and signed changes are the complete agreement concerning the pilot. They supersede earlier proposals on the same subject.

11.2 Neither party may assign this License without the other's written consent, except as part of a transfer of substantially all relevant business assets with assumption of obligations. Approved contractors are not assignees.

11.3 Amendments and waivers must be in a writing signed by authorized representatives of both parties. A technical instruction, oral discussion, unsigned proposal, delay, or single instance of nonenforcement does not amend this License or displace Section 9.2.

11.4 If a provision is unenforceable, it will be adjusted only as needed, and the remaining provisions continue.

11.5 This License is governed by the laws of the Commonwealth of Virginia, without regard to conflict-of-laws rules that would select another jurisdiction's substantive law.

11.6 The parties consent to electronic records, counterparts, and signatures for documents that expressly reflect assent.

Schedule B — Pilot Administration and Signatures

The pilot term runs from April 15 through October 15, 2024. The license fee is \$12,000 per named terminal for the stated term. A change order will use the same per-terminal fee unless the parties agree otherwise in the signed change. The pilot fee covers access for the twelve Schedule A terminals, ordinary documentation, reasonable implementation assistance, and monitoring during the evaluation. Services for a Proposed Terminal remain limited to separately authorized testing and do not alter the licensed count.

Primary administration responsibilities are allocated as follows: Provider controls provisioning, platform monitoring, and service instructions; Customer controls terminal operations, user selection, and directions to its integrator; both parties maintain records of changes and material communications. A test request should identify its purpose, environments, anticipated traffic, proposed timing, and responsible contacts. Completion is recorded through a written status summary.

The parties confirm that they reviewed the agreement, including the written change requirements and the notice-and-cure protection in Section 9.2. Each signatory represents authority to bind the identified entity. The signatures below establish the effective date but do not approve any future proposal.

Asterglen Freight Software, Inc. Authorized business representative Signed: April 15, 2024

Copper Kestrel Logistics, LLC Authorized business representative Signed: April 15, 2024

End of Pilot License and Schedules.